Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

RECEIVED
OCT 2 2 2024
LEGAL SERVICES

Filed: USBC - District of Delaware
Tupperware Brands Corporation, Et Al (CLM)
24-12156 (BLS)
TLP
0000000009

Fill in this information to identify the case:

Debtor 1 TUPPERWARE BRANDS CORPORATION , et al.

Debtor 2 (Spouse, if filing) _____

United States Bankruptcy Court for the: _____ District of Delaware

Case number 24-12156

Official Form 410

Proof of Claim

12/15

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.

Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) that you received.

Part 1: Identify the Claim

1. Who is the current creditor?

USA Truck Logistics, LLC
Name of the current creditor (the person or entity to be paid for this claim)

Other names the creditor used with the debtor USA Truck, LLC, Schenker, Inc, USA Truck

2. Has this claim been acquired from someone else?

☒ No
☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent?

Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	Where should payments to the creditor be sent? (if different)
USA Truck Logistics, LLC Name	_____ Name
3200 Industrial Park Rd Number Street	_____ Number Street
Van Buren, AR, 72956 City State ZIP Code	_____ City State ZIP Code
Contact phone 303 2332800	Contact phone _____
Contact email us.sm.frp.legal-collections@dbschenker.com	Contact email _____

Uniform claim identifier for electronic payments in chapter 13 (if you use one):

_ _

4. Does this claim amend one already filed?

☒ No
☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?

☒ No
☐ Yes. Who made the earlier filing? _____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. **Do you have any number you use to identify the debtor?**
   - ☐ No
   - ☒ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: 7 6 0 5
     94837605

7. **How much is the claim?** $ 10,267.00 . **Does this amount include interest or other charges?**
   - ☒ No
   - ☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. **What is the basis of the claim?**
   Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.
   Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).
   Limit disclosing information that is entitled to privacy, such as health care information.
   Transportation services performed

9. **Is all or part of the claim secured?**
   - ☒ No
   - ☐ Yes. The claim is secured by a lien on property.

   Nature of property:
   - ☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim*.
   - ☐ Motor vehicle
   - ☐ Other. Describe: _____

   Basis for perfection: _____
   Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

   Value of property: $_____
   Amount of the claim that is secured: $_____
   Amount of the claim that is unsecured: $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

   Amount necessary to cure any default as of the date of the petition: $_____

   Annual Interest Rate (when case was filed)_____%
   - ☐ Fixed
   - ☐ Variable

10. **Is this claim based on a lease?**
    - ☒ No
    - ☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. **Is this claim subject to a right of setoff?**
    - ☒ No
    - ☐ Yes. Identify the property: _____

12. Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☒ No

☐ Yes. *Check one:*

	Amount entitled to priority
☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B).	$
☐ Up to $2,775* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7).	$
☐ Wages, salaries, or commissions (up to $12,475*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4).	$
☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8).	$
☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5).	$
☐ Other. Specify subsection of 11 U.S.C. § 507(a)(__) that applies.	$

* Amounts are subject to adjustment on 4/01/16 and every 3 years after that for cases begun on or after the date of adjustment.

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☐ I am the creditor.

☒ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 10/15/2024
MM / DD / YYYY

DocuSigned by:
Brent Blake
1119B7AE6A555430...
Signature

Print the name of the person who is completing and signing this claim:

Name: Brent (First name) | (Middle name) | Blake (Last name)

Title: CFO

Company: USA Truck Logistics, LLC
Identify the corporate servicer as the company if the authorized agent is a servicer.

Address: 3200 Industrial Park Rd
Number Street

Van Buren | AR | 72956
City | State | ZIP Code

Contact phone _____ Email _____

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

USA TRUCK

NEW REMIT ADDRESS:

USA Truck, Inc.
PO Box 847321
Dallas, TX 75284-7321
Phone: (479) 471-2500
Fax: (479) 471-6425

Address Change

ORDER #: 8065404
INVOICE DATE: 7/17/2023
PAYMENT DUE: 8/16/2023

PPD / COL: UNKNOWN
TRAILER #: 115221
TRACTOR #:
SHIP DATE: 7/6/2023
DELIVERY DATE: 7/11/2023

BILL TO:

TUPPERWARE US INC C/O ENVISTA
11555 N MERIDIAN ST STE 300

CARMEL, IN 46032

SHIPPER	CONSIGNEE
DART MEXICO 9 RODOLFO PATRON LERMA, EM 52000	TUPPERWARE US, INC. 248 TUPPERWARE ROAD HEMINGWAY, SC 29554

REFERENCE		CHARGE DESCRIPTION	QTY / UNIT	RATE	AMOUNT
SCAC Code:	USIL	LINE HAUL FLAT	1 FLT	2089.00	$2,089.00
		FUEL SURCHARGE FLAT	1 FLT	1211.00	$1,211.00
		BORDER CROSSING FEE MEXICO	1 FLT	150.00	$150.00
		MEXICO CHARGE	1 FLT	1700.00	$1,700.00

8065404A

TOTAL AMOUNT DUE IN U.S. FUNDS $5,150.00

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Sidney Freidin Inc

Straight Bill of Lading

Shipper's No: 115221

B/L No: 98031

Entry No: 0081472-0

Name of Carrier

Received subject to the classifications and tariffs in effect on the date of issue of this bill of lading

LAREDO, TX At 07/07/23 From Sidney Freidin Inc

The property described below, in apparent good order, except as noted (contents and condition of contents of packages unknown), marked and destined as indicated below, which said carrier (the word carrier being understood throughout this contract as meaning any person or corporation in possession of the property under the contract) agrees to carry to its usual place of delivery at said destination, if on its own route, otherwise to deliver to another carrier on the route of said destination. It is mutually agreed, as to each carrier of all or any of said property over all or any portion of said route to destination, and as to each party at any time interested in all or any said property, that every service to be performed hereunder shall be subject to all the terms and conditions of the Uniform Domestic Straight Bill of Lading set forth (1) in Order Southern, Western and Illinois Freight Classification in effect on the date thereof, if this is a rail or rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment.

The shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including those on the back thereof, set forth in the classification or tariff which governs the transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assignees.

Consigned to: TUPPERWARE U.S., INC.
248 TUPPERWARE ROAD
HEMINGWAY, SC 29554

Route: Order No:

Delivering Carrier: Trailer Initial: Trailer No: 115221

Number Packages	HM	Kind of Package, Description of Articles Special Marks and Exceptions	Weight (Subj. to Corr.)	
993 BX		PLASTIC KITCHENWARE, PLASTIC SEALS AND LIDS & TOYS	20,337 Lb	Subject to section 7 of conditions of applicable bill of lading, if this shipment to be delivered to the consignor shall sign the following statement: The carrier shall not make delivery of this shipment without payment of the freight and all other lawful charges.
				(Signature of Consignor)
				If the charges are to be paid write or stamp here "To be prepaid"
				Received $ to apply as prepayment for the charges for the property described hereon
				(Agent or Cashier)
				Per (The signature here acknowledges only the amount prepaid
				Charges Advanced:
				Shipper's imprint in lieu of stamp, not a part of the Bill of Lading approved by the Interstate Commerce Commission.
		PLEASE SIGN B/L AND FAX BACK A.S.A.P. 956-724-7912		

* If a shipment moves between two ports by a waterborne carrier, the law requires that the bill of lading state whether it is the carrier's or shipper's weight.

NOTE - Where the rate is dependent on the value, shippers are required to state specifically in writing the agreed or declared value of the property.

The agreed declared value of the property is hereby specified by the shipper not to exceed

per

The box boxes used for the shipment conform to the specifications set forth on the box maker's certificate thereon, and all other requirements of the consolidated freight classification.

Shipper Per

Agent, Per

Date 07/07/23

Jennifer Weaver 7/11/23
Jennifer Weaver @ 7:10am

Report Name: 9566425158

User Id:

USA_2309

Pick Number : 99435

SHIPPED FROM:

Working Process Warehouse

2: SQUARE ONE, 7TH FLOOR PLATZ 3A LUZERN

SHIP TO :

TUPPERWARE U.S.

TUPPERWARE ROAD

248
28504

US
ESTADOS UNIDOS
Mode of Shipment :

STATUS : 560 Print Invoices

TUPPERWARE GLOBAL MODEL

REQUEST FOR INVOICING

Format : ISO P-P 7.5.1-02-02 Ver. 0

SHIP DATE : 06/07/2023

CONSIGNEE TO:

TUPPERWARE PRODUCTS AG
DE BUSINESS VILLAGE LUZERN 2: SQUARE ONE
ROOT 3A 6039
LUZERN
SWITZERLAND

CARRIER: Transportes USA TRUCK

LICENSE PLATE: P181606 INDIANA
CONTENEDOR ID: 117221
SEALS: 125915-125965
SECURITY LABELS: FAF4695965-566-569

Date : 06/07/2023

Time : 18:19:59

Page : 1

Item Number	Description	PACK	Carton Number	Carton Volume	Carton Weight	Product ID	Order Number	Line Number	Quantity Cartons	Quantity Pieces / Kg	Total Volume	Weight Net	Weight Gross	Material	Weight Gross
10133259	SHAPE-O	24	61100035006	0.142899	5.7696	53293132		2303 Q3	19	456	2.72	109.62	1.704434		162.01
10133259	SHAPE-O	24	61100035006	0.142899	5.7696	53293132		2303 Q3	30	720	4.29	173.09	1.704434		324.22
10133259	SHAPE-O	24	61100035006	0.142899	5.7696	53293132		2303 Q3	24	576	3.43	138.47	1.704434		179.28
10133255	SHAPE-O	24	61100035006	0.142899	5.7696	53293132		2303 Q3	15	360	2.14	86.54	1.704434		112.11
10150832	CW* PLUS 4-CUP/1 L RECTANGULAR	30	61100006006	0.09681	5.757	52357027		2303 Q3	56	1680	5.42	345.42	1.660407		465.64
10150832	CW* PLUS 4-CUP/1 L RECTANGULAR	30	61100006006	0.09681	5.757	52357027		2303 Q3	54	1620	5.23	310.88	1.660407		400.54
10155584	THATSA* MEGA BOWL/CHU	8	61100032006	0.11872	4.896	53190544		2303 Q3	10	80	1.12	43.96	1.82242		67.15
10170471	SUM LINE PITCHER	30	61100036006	0.113815	5.7019	52357215		2303 Q3	36	1080	4.06	261.27	1.665409		361.94
10170471	SUM LINE PITCHER	30	61100036006	0.113815	5.7019	52357215		2303 Q3	37	1110	4.17	247.87	1.665409		310.33
10172129	CW PLUS MEDIUM DIVIDED DISH	30	61100002005	0.093456	5.78	53293039		2303 Q3	53	1590	4.95	305.28	2.227605		418.01
10172129	CW PLUS MEDIUM DIVIDED DISH	30	61100002005	0.093456	5.78	53293039		2303 Q3	16	480	1.5	92.56	2.227605		126.2
10172240	LUNCH SET (COSY ROSY)	60	61100032006	0.11172	7.565	53293073		2303 Q3	19	1140	2.12	143.41	1.358648		178.72
10172241	LUNCH SET (COBALT)	60	61100032006	0.11172	7.5061	53293093		2303 Q3	17	1020	1.9	127.6	1.358648		159.2
10172241	LUNCH SET (COBALT)	60	61100032006	0.11172	7.5061	53293093		2303 Q3	11	660	1.23	82.57	1.358648		103.02
10172372	MINI SQUARE AWAY CONTAINER SET	48	61100002006	0.093456	10.44	53293107		2303 Q3	0.75	36	0.07	7.83	1.671199		9.08
10172372	MINI SQUARE AWAY CONTAINER SET	48	61100002006	0.093456	10.44	53293107		2303 Q3	2	96	0.19	20.88	1.671199		24.23
10172372	MINI SQUARE AWAY CONTAINER SET	48	61100002006	0.093456	10.44	53293107		2303 Q3	0.5	24	0.05	5.22	1.671199		6.06
10172372	MINI SQUARE AWAY CONTAINER SET	48	61100002006	0.093456	10.44	53293107		2303 Q3	0.75	36	0.07	7.83	1.671199		9.08
10172417	OUTDOOR DINNAG BOWL SET	12	61100024006	0.157941	5.7211	53293121		2303 Q3	24	288	3.79	137.31	1.576434		186.74
10172417	OUTDOOR DINNING BOWL SET	12	61100024006	0.157941	5.7211	53293121		2303 Q3	24	288	3.79	137.31	1.576434		186.74
10172417	OUTDOOR DINNING BOWL SET	12	61100024006	0.157941	5.7211	53293121		2303 Q3	14	168	2.21	80.1	1.576434		107.77
21008120491	5" INSTANT SEAL/0110/1024/SUGA	294	61100005006	0.058559	9.1728	53293103		2303 Q3	32	9408	1.87	293.53	0.924384		353.11
21008120491	5" INSTANT SEAL/0110/1024/SUGA	294	61100005006	0.058559	9.1728	53293103		2303 Q3	41	12054	2.4	376.08	0.924384		453.89
21008370278	8" SERVALIER SEAL/0110/7830/BA	124	61100005006	0.058559	7.998	53293112		2303 Q3	41	5084	2.4	327.92	0.9304458		366.07
21008370279	8" SERVALIER SEAL/0110/7830/AR	124	61100005006	0.058559	7.9931	53293113		2303 Q3	60	7440	3.51	479.89	0.9304458		535.72
21008370279	8" SERVALIER SEAL/0110/7830/AR	124	61100005006	0.058559	7.9931	53293113		2303 Q3	21	2604	1.23	167.96	0.9304458		187.5
21008390247	7" SERVALIER SEAL/0110/1024/SU	192	61100052006	0.054375	10.4832	53293108		2303 Q3	32	6144	1.8	346.52	1.299355		388.1
21008390247	7" SERVALIER SEAL/0110/1024/SU	192	61100052006	0.054375	10.4832	53293108		2303 Q3	28	5376	1.58	303.21	1.299355		339.59
21008390240	6" SERVALIER SEAL/0110/1024/SU	200	61100005006	0.058559	9.68	53293109		2303 Q3	36	7200	2.11	348.28	0.97242		389.76
21008390023	LARGE SERVALIER BOWL SEAL/0110	104	61100005006	0.058559	6.2631	53293102		2303 Q3	27	2808	1.58	223.28	0.924389		249.2
21008390038	LARGE SERVALIER BOWL SEAL/0110	104	61100005006	0.058559	6.2631	53293102		2303 Q3	45	4992	2.61	346.87	0.924389		461.22
21008390038	LARGE SERVALIER BOWL SEAL/0110	104	61100005006	0.058559	6.2631	53293102		2303 Q3	60	6240	3.51	496.09	0.924389		551.55
21028270215	THATSA BOWL SEAL	42	61100050006	0.06916	6.93	53293084		2303 Q3	27	1134	1.87	187.31	3.615715		254.73
21015500290	NEW FREEZER LINE SQR PAD SEAL	510	61100002005	0.093456	12.24	53293132		2303 Q3	45	22950	4.21	559.8	3.773591		726.61
21015500290	NEW FREEZER LINE SQR PAD SEAL	510	61100002005	0.093456	12.24	53293132		2303 Q3	16	8160	1.5	195.84	3.773591		256.22
31000395655	SUB - FREEZER MATES/ BATING SE	100	61100005006	0.056555	5.2601	53293092		2303 Q3	11	1100	0.61	57.86	2.478495		84.7
31001566018	SUB - 2 QT PITCHER/SEAL BOTTOM	100	61100036006	0.112815	6.1598	53293082		2303 Q3	1	100	0.11	6.16	2.38442		8.36
									893	116422	87.97		7607.28		9523.01

Warehouse Manager
(Name and Signature)

PROSPERO ROA -
Line Operator

Supervisor
(Name and Signature)

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Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

TRANSPORTES ELOLA

TRANSPORTES ELOLA, S.A. DE C.V.
Carretera México-Querétaro Km 34.5 Col. Las Conchitas,
Cuautitlán Izcalli, Estado de México C.P. 54757
R.F.C. TEL920429-QD6
Régimen fiscal 624-624

Lugar y fecha de expedición: Cuautitlán Izcalli, Estado de México, a 6 de julio de 2023

Cliente USA TRUCK, INC.
4202 pan american blvd LAREDO Texas USA USA 78045

CARTA DE TRASLADO 0102577
Referencia 1212379596
Patio MEX

Origen Ruta	Lerma, Estado de México	Destino Ruta	Laredo, Texas USA
Remitente	TUPPERWARE LERMA	Destinatario	USA TRUCK INC
Domicilio	Rodolfo Patrón 9 Lerma de Villada Centro Lerma Estado de México 52000 MEXICO	Domicilio	Pan American Boulevard 4202 LAREDO Texas USA 78045 USA
Recoger en	Rodolfo Patrón 9 Lerma de Villada Centro Lerma Estado de México 52000 MEXICO	Entregar en	Pan American Boulevard 4202 LAREDO Texas USA 78045 USA
Valor declarado	$1.00	Fecha prevista de entrega	sábado, 8 de julio de 2023 8:00

Descripción de la mercancía a transportar (declarada por el Cliente)	Peso Estimado	Volumen Estimado	Material Peligroso
1 Pieza MERCANCIAS GENERALES	20 Tons.	100 m3	NO

Cantidad	Unidad de Medida	Concepto o Descripción del Servicio	Importe
1	Servicio	Flete	$1.00

Indemnización: No Aplica — Total: $2.00

BL — Referencia de Cliente

Instrucciones:
CAJA SE ENTREGA EN PATIO ELOLA NUEVO LARED

Unidad	Operador	Remolque
608	50459	115221
PLACAS: 50AY8M	PROSPERO ROA RODRIGUEZ	PLACAS: P381404
FreightLiner	LICENCIA: DF100641, VIGENTE HASTA 30/07/2025	USA TRUCK, INC.

Recibido

SELLO, NOMBRE Y FIRMA DEL DESTINATARIO

Régimen fiscal de los Coordinados

Impreso el 6 de julio de 2023. Elaboró: Guillen Flores Oscar Daniel

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

USA TRUCK

NEW REMIT ADDRESS:

USA Truck Logistics, LLC
1 Penns Way, New Castle,
DE 19720
Phone: (479) 471-2500
Fax: (479) 471-6425

ORDER #: 8337557
INVOICE DATE: 3/12/2024
PAYMENT DUE: 4/3/2024

Address Change

PPD / COL: UNKNOWN
TRAILER #: 216026
TRACTOR #:
SHIP DATE: 2/16/2024
DELIVERY DATE: 2/23/2024

BILL TO:

TUPPERWARE US INC C/O ENVISTA
11555 N MERIDIAN ST STE 300

CARMEL, IN 46032

SHIPPER	CONSIGNEE
DART MEXICO 9 RODOLFO PATRON LERMA, EM 52000	TUPPERWARE US, INC. 248 TUPPERWARE ROAD HEMINGWAY, SC 29554

REFERENCE		CHARGE DESCRIPTION	QTY / UNIT	RATE	AMOUNT
SCAC Code:	USIL	LINE HAUL FLAT	1 FLT	2083.00	$2,083.00
		FUEL SURCHARGE FLAT	1 FLT	1184.00	$1,184.00
		BORDER CROSSING FEE MEXICO	1 FLT	150.00	$150.00
		MEXICO CHARGE	1 FLT	1700.00	$1,700.00

8337557A

TOTAL AMOUNT DUE IN U.S. FUNDS $5,117.00

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

DOCUMENTO DE OPERACIÓN PARA DESPACHO ADUANERO (DODA).				Página 1 de 1
N° DE INTEGRACIÓN:	109998579	PATENTE O AUTORIZACIÓN:	1786	CÓDIGO DE BARRAS BIDIMENSIONAL
FECHA DE EMISIÓN:	19-02-2024 17:30:18			
N° TOTAL DE PEDIMENTOS Y/O AVISOS CONSOLIDADOS DE LA OPERACIÓN:	2			
CONTENEDORES/EQUIPO DE FERROCARRIL/N° ECONÓMICO DEL VEHÍCULO:	CANDADOS	SECCIÓN ADUANERA DE DESPACHO:		
216026		240 NUEVO LAREDO, TAMPS. Y AEROPUERTO INTER- NACIONAL "QUETZALCOATL", NUEVO LAREDO, TAMPS.		

CADENA ORIGINAL: ||240|1786|2|4004001-COVE246GDIIP7|4004001-COVE246GDIIU3|109998579|216026|216026|2024-02-19 17:30:18||

FIRMA DEL REPRESENTANTE LEGAL, AGENTE ADUANAL, AGENCIA ADUANAL O APODERADO:

N° DE SERIE DEL CERTIFICADO: 00001000000702361707

SELLO DIGITAL:

I4TQHK4DqLKQHFJbCf79wwx
+vUqRCa70Y8IZ4EDrGBWgd4asqA5W6t4DRfB5W8kmIFYst78cv1sKeVS8f9vQJRZKHF5L
Y99MG1SF0NBi79hqAROLVUuGJcKJGb4Y3czDST1nRpu2+QzSzL5qgWL69mW4UKr0Q
Bk2NKZrtpZPTOuERl0xkPtvoYDC3njWxLRSNQ/xHd6LDkw3KMddrdlRxbqcD
+FUzbYNGFkNq7uAT4S6mH3YqTXXZkMUUdhX1nCCJV5l8xqaoBoYAWQ300pEA2ZUjTe
xRoYgyUnG+1Qded3PEPDh7jA6wxbVeX9q1joQjtCovCFnHKNpEWFPYwC zQ==

SELLO DEL SAT:

N° DE SERIE DEL CERTIFICADO: 00001000000800000031

SELLO DIGITAL:

l0yLWbiH5+5q4+tWEAwweqzxnlaX48eomCJn2WLUPYrLXP
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Vs5g6if+8kYVG9125383wfMgylt+NjR55BX4d40JjD/rNy-aWe+Tr4Y=

02-20-24

DECLARO BAJO PROTESTA DE DECIR VERDAD, EN LOS TÉRMINOS DE LO DISPUESTO POR EL ARTÍCULO 81 DE LA LEY, REPRESENTANTE LEGAL, AGENTE ADUANAL, AGENCIA ADUANAL O APODERADO.

*La fecha y hora de emisión corresponden a la hora centro del país.

CONDICIONES DEL CONTRATO DE TRANSPORTE QUE AMPARA ESTA CARTA DE PORTE / FACTURA

PRIMERA.- El objeto del presente contrato es la Prestación del Servicio de Transporte de Carga, el cual podrá ser local o foráneo, según se determine la carátula de la carta de porte/factura.

SEGUNDA: Para los efectos del presente contrato de transporte se denomina 'Porteador' al transportista 'Remitente' al usuario que contrate el servicio

TERCERA.- El Remitente, debe declarar al Porteador, el tipo de mercancía o efectos de que se trate, peso, medidas y/o numero de carga que entrega para su transporte y, en su caso el valor de la misma. La carga que se entregue a granel será pesada por el Porteador, en presencia de el Remitente, en el primer punto donde haya báscula dentro de la localidad en la cual se celebra el contrato sin que por ningún motivo se rebase el límite establecido por la normatividad aplicable.

CUARTA.- Es obligación del Remitente, declarar verazmente al proveedor toda la información relativa a la descripción, valor, cantidad, peso y demás características de la mercancía que pretende transportar, en caso de falsedad, el Remitente, asumirá la responsabilidad respectiva.

QUINTA.- Para efectos del transporte el Remitente, deberá entregar al Porteador, los documentos que la leyes y reglamentos exijan para llevar a cabo su servicio, en caso de no cumplir con estos requisitos el Porteador, está obligado a rehusar el transporte de las mercancías.

SEXTA.- El Porteador, deberá recoger y entregar la carga precisamente en los domicilios que señale el Remitente, ajustándose a los términos y condiciones convenios. El Porteador, solo está obligado a llevar la carga al domicilio señalado por el remitente para su entrega una sola vez. Si esta no fuera recibida, se dejará aviso de que la mercancía queda a disposición del interesado en las bodegas que indique el Porteador.

SÉPTIMA.- El Porteador, y el Remitente, negociarán libremente el precio del servicio, tomando en cuenta el tipo características de los embarques, volumen, regularidad, clase de carga y sistema de pago

OCTAVA.- El precio del transporte deberá pagarse en origen, salvo convenio entre las partes de pago en destino. Cuando el transporte se hubiere concertado por cobrar, la entrega de las mercancías o efectos se hará contra el pago y el Porteador, tendrá derecho a retener mientras no se le cubra, el precio convenido.

NOVENA.- El Porteador, queda eximido de la obligación de recibir mercancías o efectos para su transporte en los siguientes casos.:
a) Cuando se trate de carga que por su naturaleza, peso, volumen, embalaje defectuoso o cualquier otra circunstancia no pueda transportarse sin destruirse o sin causar daño a los demás artículos o al material rodante, salvo que la empresa de que se trate tenga el equipo adecuado.;
b) Las mercancías cuyo transporte haya sido prohibido por disposiciones legales o reglamentarias. Cuando tales disposiciones no prohíban precisamente el transporte de determinadas mercancías, pero si ordenen la presentación en ciertos documentos para que puedan ser transportadas, el Remitente estará obligado a entregar al Porteador, los documentos correspondientes.

DÉCIMA.- Es obligación del Remitente, de que el personal que se encargará de las maniobras de carga y descarga de los bienes, se identifiquen plenamente ante el Porteador, antes de iniciar las operaciones controladas, o en su caso se compromete a contratar personal que cumpla con ese requisito.

DÉCIMA PRIMERA.- En caso de pérdida, daños o robo de la mercancía transportada, el Porteador, cuenta con una póliza de seguro por lo que en caso de darse alguna de las eventualidades antes precisadas es importante que el Remitente, previamente declare el valor de las mercancías objeto del contrato. En caso de no ser declarado tal valor, si sobrevinieran pérdidas o daños a dichos bienes el Porteador, pagará la cantidad equivalente a 15 días de salario mínimo general vigente en el Distrito federal por tonelada, o la parte proporcional que corresponda tratándose de embarques de menor peso, de conformidad con el artículo 66 fracción V de la ley de Caminos, Puentes y Autotransporte Federal, vigente.

DÉCIMA SEGUNDA.- Si al momento de la entrega resulta algún faltante o avería, el Remitente deberá hacerla constar en ese acto en la carta de porte y formular su reclamación por escrito al Porteador, dentro de las 24 horas siguientes.

DÉCIMA TERCERA.- El Porteador se obliga a entregar al Remitente, deberá hacerla constar en ese acto en la carta de porte y formular su reclamación por escrito al Porteador, dentro de las 24 horas siguientes.

DÉCIMA CUARTA.- Se establece como pena convencional por el incumplimiento de cuales quiera de las partes del 15% del valor total de la operación más los gastos generados por dicha cancelación.

DÉCIMA QUINTA.- Para el caso de interpretación e incumplimiento en el presente contrato las partes se someten a la competencia de la Procuraduría Federal del Consumidor de conformidad con el artículo 24 fracción XVI de la ley Federal de Protección al Consumidor.

DÉCIMA SEXTA.- CLAUSULA. Aplica la corresponsabilidad, cuando se contrate carro por entero, para lo cual el usuario se obliga a declarar el peso y en su caso las dimensiones de la carga en esta carta porte, mismas que deberán ajustarse al Reglamento y a la NOM - 012 - SCT - 2 - 2008 sobre el peso y dimensiones máximas con los que se pueden circular los vehículos de autotransporte que transitan en las vías generales de comunicación de jurisdicción federal, en caso de falsedad o inobservancia, el usuario es responsable solidario o mancomunado de las sanciones aplicables al transportista.

TRANSPORTES EL OLA, S.A. DE C.V.

Report Name RSEG025350

TUPPERWARE GLOBAL MODEL

Date: 17/02/2024

Time: 145653

Page: 1

User Id:

CLOSED FOR INVOICING

Pick Number: USA_2757
79157

Finish: 50 FEB 24 2-01-02 Vol: 0

SHIP DATE: 17/02/2024

SHIPPED FROM: Working Process Warehouse

ZI SQUARE ONE, 7TH FLOOR PLATZ 1A LUZERN

CONSIGNED TO: TUPPERWARE PRODUCTS AG
D4 BUSINESS VILLAGE LUZERN ZI SQUARE ON
6002 04 6039
LUZERN
SWITZERLAND

SHIP TO: 20

TUPPERWARE U.S.

TUPPERWARE ROAD

240
23554

US
ESTADOS UNIDOS
Mode of Shipment: E

CARRIER: Transportes USA TRUCK

LICENSE PLATE: P671759 INDIANA

CONTAINER ID: 216026

SEALS: 125104-125646

SECURITY LABELS: BM4646823-824-825

STATUS: 550 Print Invoices

Item Number	Description	PACK	Carton Number	Carton Volume	Carton Weight	Product Size	Order Number	Line Number	Quantity Cartons	Quantity Pieces / Kg	Volume	Total	Weight Net	Weight Gross	Material	Weight Gross
10175901	ECO+ BOTTLE LARGE		61100036006	0.117615	5.16	5.3253353	2752.03		48	2304	5.42	247.68	247.68	1.675402		328.14
									48	2304	5.42		247.68			328.14

0
0
0

BRAND CHARGES

SEAL CHARGES

AIR CHARGES

CUSTOM CLEARANCE

PACKING SUPPLIES

Total: 0

DAP LAREDO, USA (INCOTERMS 2010)

Line Operator

(Name and Signature)

(Name and Signature)

(Name and Signature)

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

PAGARÉ

No. 1 de 1

ESTADO DE MEXICO, CUAUTITLAN IZCALLI, Estado de México a 2024-02-17

Debo(emos) y pagaré(mos) incondicionalmente por este pagaré a la orden de Transportes Elofo, S.A. de C.V. en sus oficinas en ESTADO DE MEXICO, CUAUTITLAN IZCALLI, Estado de México, o en donde ella el tenedor de el día: 2024-04-02

La cantidad de: $ 1,600.00 MIL SEISCIENTOS DOLARES 00/100

Valor recibido a mi (nuestra) entera satisfacción. Este pagaré forma parte de una serie numerada del 1 al 1 y todos están sujetos a la condición de que, al no pagarse cualquiera de ellos a su vencimiento, serán exigibles todos los que le siguen en número, además de los ya vencidos, desde la fecha de vencimiento de este documento hasta el día de su liquidación, causará intereses moratorios al tipo de 3.0 % mensual. pagadero en esta ciudad juntamente con el principal.

Nombre y datos del Deudor

Nombre: USA TRUCK
Dirección: 4202 PAN AMERICAN BLVD, LAREDO, TEXAS, USA USA 78045

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

TRANSPORTES ELOLA

TRANSPORTES ELOLA, S.A. DE C.V.
Carretera México-Querétaro Km 34.5 Col. Las Conchitas,
Cuautitlán Izcalli, Estado de México C.P. 54757
R.F.C. TEL920429-QD6
Régimen fiscal 624-624

Lugar y fecha de expedición: Cuautitlán Izcalli, México, a 17 de febrero de 2024

Cliente USA TRUCK, INC.
4202 pan american blvd LAREDO Texas USA USA 78045

CARTA DE TRASLADO 0125603
Referencia 1212498840
Patio MEX

Origen Ruta	Lerma, Estado de México	Destino Ruta	Laredo, Texas USA
Remitente	TUPPERWARE LERMA	Destinatario	USA TRUCK INC
Domicilio	Rodolfo Patrón 9 Lerma de Villada Centro Lerma Estado de México 52000 MEXICO	Domicilio	Pan American Boulevard 4202 LAREDO Texas USA 78045 USA
Recoger en	Rodolfo Patrón 9 Lerma de Villada Centro Lerma Estado de México 52000 MEXICO	Entregar en	Pan American Boulevard 4202 LAREDO Texas USA 78045 USA
Valor declarado	$1.00	Fecha prevista de entrega	domingo, 18 de febrero de 2024 8:00

Descripción de la mercancía a transportar (declarada por el Cliente)	Peso Estimado	Volumen Estimado	Material Peligroso
1 Pieza MERCANCIAS GENERALES	20 Tons.	100 m3	NO

Cantidad	Unidad de Medida	Concepto o Descripción del Servicio	Importe
1	Servicio	Flete	$1.00

Indemnización	No Aplica	Total	$1.00

BL	Referencia de Cliente

Unidad	Operador	Remolque
600	52190	216026
PLACAS: 26AU6J FreightLiner	JUAN CARLOS NOGALES PEDRAZA LICENCIA: DF00146697, VIGENTE HASTA 07/04/2026	PLACAS: P471759 USA TRUCK, INC.

Recibido

SELLO, NOMBRE Y FIRMA DEL DESTINATARIO

Régimen fiscal de los Coordinados

Impreso el 17 de febrero de 2024. Elaboró: Hernandez Santos Kevin Suriel

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

Sid

Straight Bill of Lading

Shipper's No: 216026

B/L No: 99384

Entry No: 0082242-6

Name of Carrier

Received subject to the classifications and tariffs in effect on the date of issue of this bill of lading

LAREDO, TX At 02/19/24 From Sidney Freidin Inc

The property described below, in apparent good order, except as noted (contents and condition of contents of packages unknown), marked and destined as indicated below, which said carrier (The word carrier being understood throughout this contract as meaning any person or corporation in possession of the property under the contract) agrees to carry to its usual place of delivery at said destination, if on its own route, otherwise to deliver to another carrier on the route of said destination. It is mutually agreed, as to each carrier of all or any of said property over all or any portion of said route to destination, and as to each party at any time interested in all or any said pro, that every service to be performed hereunder shall be subject to all the terms and conditions of the Uniform Domestic Straight Bill of Lading set forth (1) in Order Southern, Western and Illinois Freight Classification in effect on the date thereof, if this is a rail or rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment.

Shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including those on the back thereof, set forth in the classification or tariff which governs the transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assignees.

Consigned to: TUPPERWARE U.S., INC.
248 TUPPERWARE ROAD
HEMINGWAY, SC 29554

Route:

Delivering Carrier:

Order No:

Trailer Initial: Trailer No: 216026

Number Packages	HM	Kind of Package, Description of Articles Special Marks and Exceptions	Weight (Subj. to Corr.)	
1,016 BX		PLASTIC KITCHENWARE	18,779 Lb	

125 504
125 646

Subject to section 7 of conditions of applicable bill of lading, if this shipment is to be delivered to the consignor shall sign the following statement:
The carrier shall not make delivery of this shipment without payment of the freight and all other lawful charges.

(Signature of Consignor)

If the charges are to be paid write or stamp here "To be prepaid"

Received $ to apply as prepayment for the charges for the property described hereon

(Agent or Cashier)

Per (The signature here acknowledges only the amount prepaid

Charges Advanced:

Shipper's imprint in lieu of stamp, not a part of the Bill of Lading approved by the Interstate Commerce Commission.

PLEASE SIGN B/L AND FAX BACK A.S.A.P. 956-724-7912

* If the shipment moves between two ports by a waterborne carrier, the law requires that the bill of lading state whether it is the carrier's or shipper's weight.
NOTE - Where the rate is dependent on the value, shippers are required to state specifically in writing the agreed or declared value of the property.
The agreed declared value of the property is hereby specified by the shipper not to exceed

per

The fiber boxes used for this shipment conform to the specifications set forth on the box maker's certificate thereon, and all other requirements of the consolidated Freight classification.

Shipper Per

Agent, Per

Date 02/19/24

Eddie Heath SR

Docusign Envelope ID: F22A1934-6F31-4054-AA60-5449B0B02A25

Sidney Freidin Inc

Straight Bill of Lading

Shipper's No: 216026

B/L No: 99394

Entry No: 0082242-6

Name of Carrier

Received subject to the classifications and tariffs in effect on the date of issue of this bill of lading

LAREDO, TX At 02/19/24 From Sidney Freidin Inc

The property described below, in apparent good order, except as noted (contents and condition of contents of packages unknown), marked and destined as indicated below, which said carrier (The word carrier being understood throughout this contract as meaning any person or corporation in possession of the property under the contract) agrees to carry to its usual place of delivery at said destination, if on its own route, otherwise to deliver to another carrier on the route of said destination. It is mutually agreed, as to each carrier of all or any of said property over all or any portion of said route to destination, and as to each party at any time interested in all or any said property, that every service to be performed hereunder shall be subject to all the terms and conditions of the Uniform Domestic Straight Bill of Lading set forth (1) in Order Southern, Western and Illinois Freight Classification in effect on the date thereof, if this is a rail or rail-water shipment, or (2) in the applicable motor carrier classification or tariff if this is a motor carrier shipment.

Shipper hereby certifies that he is familiar with all the terms and conditions of the said Bill of Lading, including those on the back thereof, set forth in the classification or tariff which governs the transportation of this shipment, and the said terms and conditions are hereby agreed to by the shipper and accepted for himself and his assignees.

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248 TUPPERWARE ROAD
HEMINGWAY, SC 29554

Route: Order No:

Delivering Carrier: Trailer Initial: Trailer No: 216026

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per

The fiber boxes used for this shipment conform to the specifications set forth on the box maker's certificate thereon, and all other requirements of the consolidated Freight classification

Shipper Per

Agent Per

Date 02/19/24



US POSTAGE
& FEES PD IMI
10/16/2024
From 72956
1 lbs 14 ozs
Zone 7

Pitney Bowes
CommPrice

028W0002310149

2000412529

USPS PRIORITY MAIL®

Expected Delivery Date: 10/19/2024

Charles Clay
USA Truck Inc
3200 Industrial Park Rd
Van Buren AR 72956-6110

0003

B900

TUPPERWARE BRANDS CORPORATION
CLAIMS PROCESSING CENTER
C/O EPIQ CORPORATE RESTRUCTURING, LLC
PO BOX 4419
BEAVERTON OR 97076-0419

USPS CERTIFIED MAIL

9402 8091 0515 6595 6657 01

RECEIVED
OCT 2 2 2024
LEGAL SERVICES